

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202200536	☐ Force ☐ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/26/2022 6:30 PM, Wednesday, 02/15/2023 8:41 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/26/2023	Precinct: 42
Date/Time CV Reported Thu, 01/27/2022 9:48 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/27/2022 9:48 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Danny Aguilar	02496	941319	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Brian Query	00000	937315	042 PCT
2. PO Juan Peralta	21062	959060	042 PCT
3. PO John Batule	25156	963863	042 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Danny Aguilar	Abuse: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar stopped § 87(2)(b)	A . Substantiated
B . SGT Danny Aguilar	Abuse: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar frisked § 87(2)(b)	B . Substantiated
C . SGT Danny Aguilar	Abuse: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar searched § 87(2)(b)	C . Substantiated
D . SGT Danny Aguilar	Abuse: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar failed to explain to § 87(2)(b) the reason for a law enforcement activity.	D . Unable to Determine
E . SGT Danny Aguilar	Abuse: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar failed to provide § 87(2)(b) with a business card.	E . Unable to Determine
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
H . SGT Danny Aguilar	Untruthful Stmt.: On February 15, 2023, at 100 Church Street in Manhattan, Sergeant Danny Aguilar provided a false official statement to the CCRB.	H . Substantiated

Case Summary

On January 27, 2022, § 87(2)(b) filed this complaint on behalf of her 12-year-old son, § 87(2)(b) via the CCRB's Call Processing System. On January 26, 2022, § 87(2)(b) § 87(2)(b) sister and a reporting non-witness, called IAB to report § 87(2)(b) complaint under IAB log § 87(2)(b) which was received by the CCRB on January 28, 2022.

On January 26, 2022, at approximately 6:30 p.m., § 87(2)(b) and his twin brother, § 87(2)(b) walked to § 87(2)(b) Grocery located at § 87(2)(b) in the Bronx from their apartment to purchase § 87(2)(b) soup. Shortly after they arrived at the deli, Sergeant Danny Aguilar and Police Officer John Batule, both of the 42nd Precinct, entered the deli and Sgt. Aguilar approached § 87(2)(b) (**Allegation A: Abuse of Authority, Substantiated**). Without saying anything, Sgt. Aguilar frisked and searched § 87(2)(b) (**Allegations B-C: Abuse of Authority, Substantiated**). Sgt. Aguilar allegedly failed to explain to § 87(2)(b) the reason for stopping, frisking, and searching him (**Allegation D: Abuse of Authority, Unable to Determine**). Sgt. Aguilar allegedly failed to offer § 87(2)(b) his business card (**Allegation: Abuse of Authority, Unable to Determine**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) No arrest or summons resulted from this incident.

On February 15, 2023, Sergeant Danny Aguilar provided a false official statement to the CCRB (**Allegation H: Untruthful Statement, Substantiated**).

This case was originally assigned to former Investigator Crawford and was reassigned to Investigator Thomas upon her departure from the agency.

There is no body-worn camera ("BWC") footage of this incident (**Board Review 01**) (See OPMN). Cellphone video footage was received from § 87(2)(b) (**Board Review 02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar frisked § 87(2)(b)

Allegation (C) Abuse of Authority: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar searched § 87(2)(b)

Allegation (D) Abuse of Authority: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar failed to explain to § 87(2)(b) the reason for a law enforcement activity.

Allegation (E) Abuse of Authority: On January 26, 2022, at § 87(2)(b) in the Bronx, Sergeant Danny Aguilar failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that § 87(2)(b) sent him and his twin brother, § 87(2)(b) to § 87(2)(b) Grocery to purchase soup (**Board Review 03**). § 87(2)(b) and § 87(2)(b) went directly to the deli from their home, § 87(2)(b) in the Bronx, which is an approximate three-minute walk. En route to the deli, § 87(2)(b) did not see anyone he knew and did not talk to anyone other than § 87(2)(b) who stands 5'0" tall, was wearing a red coat, a sweater, black Adidas pants with a white stripe that had two front pockets, and black Yeezy's sneakers. § 87(2)(b) had three #2 pencils in his left jacket pocket and did not have anything in his right jacket pocket, sweater pockets, or pants pockets. § 87(2)(b) was wearing a blue coat. § 87(2)(b) and § 87(2)(b) entered the deli and walked down the center aisle, searching for the containers of soup, and ended up in the first aisle visible from the entrance of the deli, where the soup was located. § 87(2)(b) did not recall seeing officers in the deli

prior to his entry. He first observed Sgt. Aguilar and PO Batule, identified via the investigation, enter the deli approximately two to three minutes after he and § 87(2)(b) did. § 87(2)(b) had two packets of soup in his hands as the officers entered the deli. Sgt. Aguilar immediately approached § 87(2)(b) and, without saying anything, Sgt. Aguilar reached his hand into § 87(2)(b) two jacket pockets, then his two sweater pockets, and finally his two pant pockets. Sgt. Aguilar never took anything out of any of § 87(2)(b) pockets. Another officer, identified via the investigation as PO Batule, was present but he stood closer to the entrance and § 87(2)(b) view of him was completely obstructed. § 87(2)(b) stood towards the right side of the aisle and did not speak to the officers. After Sgt. Aguilar entered § 87(2)(b) pants pockets, he asked, “How old are you? Where are your parents? Where do you live?” § 87(2)(b) answered that he was 12 years old, lived down the street, and that his mother was home. Sgt. Aguilar said, “You can’t be walking around like that” and he and PO Batule left the deli without speaking to anyone. PO Batule never spoke to either § 87(2)(b) or § 87(2)(b). Sgt. Aguilar never told § 87(2)(b) why he was talking to him. § 87(2)(b) did not feel like he could leave the interaction because Sgt. Aguilar was talking to him. He was very fearful and unsure of the reason the officers approached him specifically. Once the officers left the deli, § 87(2)(b) and § 87(2)(b) walked to the register. After purchasing the soup, § 87(2)(b) and § 87(2)(b) went home without making any stops or seeing any officers. § 87(2)(b) shared his experience with § 87(2)(b) who then went to the deli requesting video footage. § 87(2)(b) did not receive a business card from the officers.

§ 87(2)(b) statement was generally consistent with § 87(2)(b) testimony (**Board Review 04**). § 87(2)(b) could not recall if he held any soup in his hand but remembered § 87(2)(b) reaching to take them down, as he is taller. As § 87(2)(b) took the soup from the top shelf, Sgt. Aguilar and PO Batule entered the deli. Immediately, Sgt. Aguilar approached § 87(2)(b) and said, “How old are you? Where are your parents at?” Why are you out at this time?” Sgt. Aguilar touched and entered § 87(2)(b) pants pockets, jacket pockets, and sweater pockets in the order. Sgt. Aguilar did not touch § 87(2)(b) who was approximately an inch away from § 87(2)(b). Sgt. Aguilar’s attention was on § 87(2)(b) and PO Batule stood by the door to the deli. After searching § 87(2)(b) pockets, Sgt. Aguilar said, “You cannot be walking around like that,” as he exited the deli with PO Batule.

In cellphone video footage (**Board Review 02**), which captures a surveillance camera monitor inside of § 87(2)(b) Grocery, at 01:43, § 87(2)(b) enters the aisle. § 87(2)(b) walks directly behind him. At 01:45, § 87(2)(b) reaches up towards a shelf in the middle of the aisle, as Sgt. Aguilar approaches him. PO Batule remains standing a few feet behind Sgt. Aguilar. Sgt. Aguilar pats down § 87(2)(b) jacket and pants area and lifts his jacket as he does so. It is unclear if he enters any of § 87(2)(b) pockets. Though there is no audio, Sgt. Aguilar appears to speak to § 87(2)(b) briefly. At 02:10, Sgt. Aguilar begins to walk away from § 87(2)(b). At 02:12, Sgt. Aguilar turns around and appears to speak to § 87(2)(b) briefly. He then walks away. § 87(2)(b) and § 87(2)(b) remain standing in the aisle, looking towards the direction the officers walked towards. § 87(2)(b) then grabs an item from the shelf and he and § 87(2)(b) walk away.

Sgt. Aguilar’s statement was generally inconsistent with the video evidence and the civilians’ testimony (**Board Review 05**). He testified that he was seated in the rear left seat of an unmarked police vehicle driving northbound on Prospect Avenue in in the Bronx. Police Officer Juan Peralta, of the 42nd Precinct, was operating the vehicle and PO Batule was in the front passenger’s seat. From inside the car, Sgt. Aguilar looked towards his right and saw two children, identified via the investigation as § 87(2)(b) and § 87(2)(b) approximately 15 to 20 feet away. He did not remember what they were wearing. However, later in his interview Sgt. Aguilar said the children

were bundled up and wearing puffer jackets, so he could not determine how old they were. The children were not committing any violations. § 87(2)(b) and § 87(2)(b) looked lost, as they kept on pointing or possibly waving at the cars and street signs. Nothing else indicated to Sgt. Aguilar that they seemed lost. When asked if they seemed in distress, Sgt. Aguilar said that they were in a high crime area and that his goal is to make sure that nothing happens to anyone. At the time of the incident there were many shootings, and the officers were instructed to patrol the area, where there is a lot of gang violence. Prior to approaching § 87(2)(b) and § 87(2)(b) Sgt. Aguilar did not speak to anyone about them and there were no 911 calls regarding the children. The decision to see if § 87(2)(b) and § 87(2)(b) were okay was, “Every officers’ decision.” Sgt. Aguilar did not make the decision and did not remember any conversation prior to the approach. Sgt. Aguilar told PO Batule and PO Peralta, “I think they look lost,” at which point he exited the vehicle. Sgt. Aguilar entered a deli and asked § 87(2)(b) and § 87(2)(b) if everything was alright. They said yes, and that they were getting soup or food for their mother. Sgt. Aguilar asked the boys, “Are you sure?” and they said, “Yeah, I’m good. My mom knows.” Sgt. Aguilar then exited the deli. Sgt. Aguilar did not recall frisking § 87(2)(b) and denied making any physical contact with the children. Sgt. Aguilar never asked the children what they were doing out at that time, how old they were, or where their parents were. Sgt. Aguilar entered the deli because he believed the children were lost and in distress. The children’s age, the location, and the time of the incident were all reasons why he entered the deli after the children. He did not remember if PO Peralta or PO Batule entered the deli with him. Sgt. Aguilar did not remember if § 87(2)(b) or § 87(2)(b) had any apparent bulges on their clothing, though they might have had soup in their pocket.

When presented with cellphone video footage (**Board Review 02**), Sgt. Aguilar said that it appeared that he made physical contact with the children but did not know due to the quality of the video footage. He was not able to see if he ever patted § 87(2)(b) down. After reviewing the footage again, Sgt. Aguilar said that § 87(2)(b) told him that he had a cup of soup. When told that the footage captured Sgt. Aguilar’s hand going down toward the hem of § 87(2)(b) jacket and that it appeared that the bottom of the jacket then moved up slightly, Sgt. Aguilar said that § 87(2)(b) told him that he had a cup of soup and said, “I have it in my pocket, you could take it out.” Sgt. Aguilar said he did not enter the deli to stop the children; he went inside to see if they were okay or if they were lost. During the CCRB interview, Sgt. Aguilar then said, “And then the kid in the red said, ‘I’m okay, I have nothing on me, I just have a cup of soup in my pocket,’ I think it was a cup of soup, and he’s like, ‘You could check it if you want.’” When asked what he did once § 87(2)(b) told him that he could check his pocket, Sgt. Aguilar said, “He gives me the consent to search, I’m gonna search him.” Sgt. Aguilar did not know if he entered § 87(2)(b) pocket. When asked why he checked the pocket after § 87(2)(b) told him that he could, Sgt. Aguilar said that he did not ask to search § 87(2)(b) but that § 87(2)(b) told him he had soup in his pocket and said, “You can search it if you want.” He patted § 87(2)(b) down because § 87(2)(b) told him, “Here look,” and made a head movement towards his pocket. Besides the fact that § 87(2)(b) consented for Sgt. Aguilar to search him, there was no other reason that he patted down the pocket. There was no law enforcement need to frisk the pocket. Sgt. Aguilar solely patted down the one pocket where the soup was, § 87(2)(b) right jacket pocket. He did not remember if he ever found the cup of soup. Sgt. Aguilar did not have any reason to believe § 87(2)(b) was armed. When asked if he ever explained to § 87(2)(b) why he was patting him down, Sgt. Aguilar said, that § 87(2)(b) gave him consent to frisk him, so he “explained to him” and left the location. When asked what he explained, Sgt. Aguilar said, “The reason. The thing is I didn’t stop him for the...for what he had in his pocket. I stopped him because he was scared. He looked scared and all that so. Honestly, I do not remember if I even said anything to him.” Sgt. Aguilar did not remember if he offered § 87(2)(b) his business card. Sgt. Aguilar stated that officers are required to provide a civilian with a business card every time officers stop or

search them. Sgt. Aguilar said that § 87(2)(b) was not considered stopped because he was there to help him and § 87(2)(b) was, “Giving (him) the consent.”

During his CCRB interview, after Sgt. Aguilar explained that § 87(2)(b) was not considered stopped, Sgt. Aguilar’s Union Representative said, “Also you didn’t search him,” and Sgt. Aguilar said, “Right, I didn’t search him.” When asked to clarify, Sgt. Aguilar confirmed that, though, earlier in his interview he testified that he did not remember if he entered § 87(2)(b) pocket, he did not, in fact, enter the pocket or search § 87(2)(b). When presented with the footage again and told that the footage was being played to see if it refreshed his recollection on whether he ever offered § 87(2)(b) a business card, as the footage was playing, Sgt. Aguilar said that he probably did offer the children his business card when he turned back towards them after walking away, and that the children said no. Sgt. Aguilar said that this is his “tactic,” in that instead of offering his business card immediately, he takes a few steps back, and then offers one, which seemed to be the case here based on his body language in the footage. The reason Sgt. Aguilar mainly interacted with § 87(2)(b) was because § 87(2)(b) is the one who walked up to him. Sgt. Aguilar did not prepare a stop report and had no reason as to why he did not do so.

PO Batule testified that from the front passenger’s seat of the unmarked police vehicle, the officers occupied, he observed two approximately 13-year-old children running northbound on the sidewalk to the right of their vehicle for approximately half of a block (**Board Review 06**). The children were looking around and periodically ducking down, as if they were hiding from something. The way that the children were running and ducking was “a little suspicious,” as it appeared that they were either running from something that they did or something that someone was trying to do to them. Given that the area was a shooting prone location, where gang members hang out, PO Batule did not know if the children were running from something that may have just occurred, like a robbery or shooting, or if they were running on their own. Sgt. Aguilar first noticed the children and pointed them out to by saying something to the effect of, “Look at these kids.” PO Batule did not remember Sgt. Aguilar saying anything else. The children could have possibly had weapons on them, but PO Batule did not see anything on them specifically that indicated that they did besides their movements. The officers observed the children for a few seconds at which point they entered a deli. PO Batule and Sgt. Aguilar then exited their vehicle and went to ask the children if everything was okay. PO Batule entered the deli with Sgt. Aguilar and saw the children standing in one of the aisles. PO Batule did not remember where their hands were. PO Batule’s suspicion of the children decreased when he entered the store and saw them, as they were no longer doing what they had been on the street. It appeared that they were solely purchasing items. When PO Batule entered the store, he did not have any reason to believe that they were armed. PO Batule observed Sgt. Aguilar approach the children and asked them something along the lines of, “What happened? Are you guys okay? Are you running from something? Are you lost?” In response, the children looked shocked and surprised, as they stood still and looked at Sgt. Aguilar. PO Batule stood approximately five to ten feet behind Sgt. Aguilar, and Sgt. Aguilar stood right in front of the children. From where he was standing, PO Batule could partially see the children. PO Batule could not hear anything that the children were saying. PO Batule could not see if Sgt. Aguilar frisked the children because Sgt. Aguilar, who is approximately 6’3” tall, was mostly covering the children, who were approximately 5’0” tall. He did not see Sgt. Aguilar enter any of the children’s pockets. He could not see the children well enough to see if they had any apparent bulges on their clothing or anything in their pockets. When asked if he heard either of the children mention anything about the contents of their pockets, PO Batule said he did not hear any of the conversation. When asked if he ever heard Sgt. Aguilar explain to the children why he approached them, PO Batule said that Sgt. Aguilar said, “We’re good,” to PO Batule and the officers exited the store and continued patrol. Besides possibly hearing Sgt. Aguilar say, “What happened?” “Are you guys okay?” “Are you running from

something?” “Are you lost?” PO Batule did not hear Sgt. Aguilar say anything else to them. PO Batule did not think that Sgt. Aguilar offered his business card to the children but was not completely sure.

PO Peralta testified that he was operating the police vehicle he, PO Batule, and Sgt. Aguilar occupied (**Board Review 07**). As he was driving, PO Peralta observed two male individuals on the sidewalk to the right of the police vehicle, who were walking straight and looking side to side. At one point, the males turned around and stared at the vehicle that the officers occupied. The males continued walking and went into a deli. PO Peralta did not recall their approximate age and could not tell whether they were children or adults, as they had their backs towards him. PO Peralta did not suspect the two males of any criminal activity. PO Peralta stopped the vehicle and PO Batule and Sgt. Aguilar exited. He did not recall who made the decision to stop the vehicle. PO Peralta did not recall there being any conversation among officers regarding the two individuals prior to Sgt. Aguilar and PO Batule exiting the vehicle. Once Sgt. Aguilar and PO Batule exited the vehicle, they walked towards a grocery store. A couple minutes later, PO Batule and Sgt. Aguilar returned to the vehicle. PO Peralta did not recall what, if anything, Sgt. Aguilar and PO Batule said after they returned. He never learned of the reason why the officers exited the vehicle.

Lieutenant Query testified that he responded to § 87(2)(b) Grocery after IAB requested that he do so, per § 87(2)(b) request to speak to the highest-ranking member of service working (**Board Review 08**). Upon his arrival, Lieutenant Query spoke to § 87(2)(b) who said that her children returned home from the store and informed her that they were stopped by police. He did not recall § 87(2)(b) alleging that the children were searched; she just said they were stopped. Lieutenant Query did not remember if he spoke to § 87(2)(b) and § 87(2)(b) about the incident. After Lieutenant Query spoke to § 87(2)(b) he entered the deli where the incident occurred and spoke to two employees. Lieutenant Query asked them if something happened and the employees confirmed that something did. They said that the officers were in the store for a few seconds and that everyone then left. Lieutenant Query asked if the deli had video, and one of the employees showed him the camera room and video of the incident. The video was grainy, but Lieutenant Query was still able to see an interaction that lasted approximately 20 to 25 seconds. Lieutenant Query saw § 87(2)(b) and § 87(2)(b) identified via the investigation, run into the store. They looked as if they were hiding or concealing themselves behind a chip aisle. They remained there for a few seconds and then walked up the same path that they ran, at which point they interacted with Sgt. Aguilar, who had a conversation with them for a few seconds and left the store. Lieutenant Query did not remember seeing Sgt. Aguilar frisking or searching anyone.

Lieutenant Query spoke to Sgt. Aguilar about that incident later that night. Sgt. Aguilar said the two subjects, identified via the investigation as § 87(2)(b) and § 87(2)(b) caught the officers' attention because they were running and ran into the store in a way that made it appear as though they were doing so for a purpose. Sgt. Aguilar said he exited his department vehicle and walked into the store to ensure that the store was not being victimized. He spoke to and interacted with § 87(2)(b) and § 87(2)(b) and they all parted ways. Sgt. Aguilar did not break down into the specifics of what happened when he interacted with them. Sgt. Aguilar did not tell Lieutenant Query what he said to § 87(2)(b) and § 87(2)(b). Sgt. Aguilar never mentioned to Lieutenant Query what, if anything, § 87(2)(b) and § 87(2)(b) said to him. Sgt. Aguilar said the interaction was very brief. Sgt. Aguilar never referred to § 87(2)(b) and § 87(2)(b) as children. Sgt. Aguilar did not mention asking for consent to search § 87(2)(b) and § 87(2)(b). Sgt. Aguilar never mentioned receiving consent voluntarily from § 87(2)(b) and § 87(2)(b) to search them. After speaking to all parties, Lieutenant Query called the command center and provided them with an update on his preliminary findings. When presented IAB log #§ 87(2)(b) (**Board Review 09**), which captured the details of the narrative, Lieutenant Query said he concurred with what he read,

but did not have an independent recollection of the information. He did not remember Sgt. Aguilar telling him that he patted down § 87(2)(b) or § 87(2)(b). Lieutenant Query said that the line, which reads that he reviewed BWC is not accurate, as he did not review any BWC related to this incident. Lieutenant Query did not remember Sgt. Aguilar telling him that § 87(2)(b) or § 87(2)(b) had something in their pockets.

On February 10, 2023, Det. Abdullah of the NYPD Legal Bureau confirmed that the IAB case pertaining to this incident was closed and that Sgt. Aguilar was interviewed informally, and the interview, therefore, was not recorded (**Board Review 09**). In the IAB case regarding this incident (**Board Review 23**), the NYPD closed allegations of a stop of person, search of person, question, frisk, and failure to provide business card as Unsubstantiated.

IAB Log #§ 87(2)(b) (**Board Review 10**), notes that Lieutenant Query reported to the IAB Command Center that Sgt. Aguilar had a conversation with the children, one of whom had his hand in his pocket. Sgt. Aguilar asked the child to remove his hand and quickly pat the pocket. There was no search or enforcement action taken.

The courts have consistently recognized officers' obligation to render assistance to those in distress. Furthermore, more than half of police work is non-criminally related, and the police must be given wide latitude and not be unrealistically restricted in approaching individuals for more information in the course of such work. An officer may forcibly stop an individual when the officer possesses reasonable suspicion that the person has committed, is committing, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (**Board Review 11**).

Sgt. Aguilar testified that he entered the deli after § 87(2)(b) and § 87(2)(b) because he believed that they were lost and in distress. § 87(2)(g)

Lieutenant Query spoke with Sgt. Aguilar after the incident and interviewed him as part of an official Police Department investigation, § 87(2)(g)

§ 87(2)(b) Sgt. Aguilar also further restricted § 87(2)(b) freedom by frisking him almost immediately after approaching (discussed in the analysis below). § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

An officer may frisk an individual when they reasonably suspect that the individual may be armed and present a risk of harm to the officer. Where the frisk reveals an object that the officer reasonably suspects may be a weapon, the officer may search only those interior portions of the stopped person's clothing to remove the weapon. People v. DeBour, 40 N.Y. 2d. 210 (1976) (**Board Review 11**).

During a "level three" encounter, officers are permitted to seek consent to search, which must be voluntarily given, NYPD Patrol Guide, Procedure 212-11 (**Board Review 12**).

Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. People v. Gonzalez, 39 N.Y.2d 122 (1976) (**Board Review 13**).

In assessing the voluntariness of consent, a court should consider: (1) whether the consent was given while the individual was in police custody, and how many officers were present; (2) the personal background of the consenter, including his age and prior experience with the law; (3) whether the consenter offered resistance; and (4) whether the police advised the consenter of his right to refuse consent. Matter of Daijah D., 86 A.D.3d 521 (2011) (**Board Review 14**). In Matter of Daijah D., 86 A.D.3d 521 (2011), four police officers stopped a 14-year-old and asked to search her purse, the New York Supreme Court held that the consent to search was involuntary and evidence recovered suppressed, also factoring in her age.

Though Sgt. Aguilar testified that he frisked § 87(2)(b) solely because § 87(2)(b) told him that he could search his pocket for soup he had therein, Lieutenant Query testified that Sgt. Aguilar never mentioned receiving consent to search, which is consistent with the contents of the IAB log pertaining to this incident. § 87(2)(g)

§ 87(2)(b) Sgt. Aguilar also acknowledged that § 87(2)(b) and § 87(2)(b) were children. Thus, as § 87(2)(b) was 12 years old at the time of the incident and approached by two officers inside a deli with his twin brother with no parent or legal guardian present, § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation B** be closed as **Substantiated**.

While Sgt. Aguilar testified that he did not enter § 87(2)(b) pockets nor search him, the video footage captures him lifting § 87(2)(b) jacket, § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation C** be closed as **Substantiated**.

During a law enforcement activity, including stops, frisks, and searches of persons, officers are required to provide such person an explanation of the reason for such law enforcement activity, unless providing such information would impair a criminal investigation. NYC Administrative Code §14-174 (6)(2) (**Board Review 16**).

Officers are required to offer a business card upon the conclusion of law enforcement activities, including home searches, except in cases when a summons is issued, or an arrest is made. NYPD Administrative Guide, Procedure 304-11 (**Board Review 17**).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations D and E** be closed as **Unable to Determine**.

§ 87(2)(g), § 87(4-b)

Allegation (H) Untruthful Statement: On February 15, 2023, at 100 Church Street in Manhattan, Sergeant Danny Aguilar provided a false official statement to the CCRB.

As mentioned above, after watching the cellphone footage, Sgt. Aguilar initially testified that after § 87(2)(b) told him he could check his pockets, Sgt. Aguilar said, “He gives me the consent to search, I’m gonna search him.” When asked if he entered § 87(2)(b) pocket, Sgt. Aguilar testified, “I don’t know.” However, once his Union Representative asserted that Sgt. Aguilar did not search § 87(2)(b) Sgt. Aguilar agreed that he did not search him. When asked to clarify his earlier testimony, Sgt. Aguilar insisted that he did not search § 87(2)(b) or enter his pockets. As discussed above, the video footage (**Board Review 02**) captures Sgt. Aguilar lifting § 87(2)(b) jacket while he was frisking him, which constitutes a search.

Additionally, Sgt. Aguilar testified that he approached § 87(2)(b) and § 87(2)(b) solely to see if they were okay, as they appeared lost and in distress. Sgt. Aguilar asserted that he did not enter the deli to stop the children; he went inside to see if they were okay or if they were lost. However, Lieutenant Query testified that Sgt. Aguilar informed him that he approached § 87(2)(b) and § 87(2)(b) in the deli to ensure that the deli would not be victimized by them. As discussed above, Lieutenant Query participated in the official Police Department investigation into this complaint and interviewed the civilians and Sgt. Aguilar in regards (**Board Review 23**). In the IAB log, Lieutenant Query reported that Sgt. Aguilar asked one of the boys, identified via the investigation as § 87(2)(b) to remove his hands from his pockets and then Sgt. Aguilar quickly patted the pocket. During his CCRB testimony, Lieutenant Query did not have an independent recollection of the aforementioned but denied ever being informed by Sgt. Aguilar that he received voluntary consent.

Officers are prohibited from making a false official statement, an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which a statement is made. NYPD Administrative Guide, Procedure 304-10 (**Board Review 18**).

Whether Sgt. Aguilar searched § 87(2)(b) and the reason he entered the deli after § 87(2)(b) and § 87(2)(b) are material facts related to the outcome of the dispositions of the search and stop allegations in this case, as video evidence does not capture the entirety of the interaction, there is no audio of the incident, there is no BWC footage, and the investigation relied heavily on Sgt.

Aguilar's testimony given that he was the sole contact officer. Sgt. Aguilar was given the opportunity to clarify whether he searched § 87(2)(b) and maintained that, though he earlier testified that he did not remember if he entered § 87(2)(b) pockets, he did not, in fact, search § 87(2)(b) which contradicts the surveillance footage showing him lift up § 87(2)(b) jacket. Furthermore, Lieutenant Query's testimony directly contradicts Sgt. Aguilar's testimony regarding the reason that he approached the children inside the deli, § 87(2)(g)

Sgt. Aguilar stated that he patted § 87(2)(b) pocket because he received voluntary consent, but this directly contradicts Lieutenant Query's initial report to IAB that Sgt. Aguilar told him to take his hands out and then patted his pocket. § 87(2)(g)

It is therefore recommended that § 87(2)(b) be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 19-21**).
- Sgt. Aguilar has been a member of service for 16 years and has been a subject in 19 CCRB complaints and 46 allegations, of which two were substantiated. § 87(2)(g)
 - Case # 201502107 involved substantiated allegations of a threat of force and a discourteous word. The Board recommended Formalized Training and the NYPD imposed Command Level Instructions. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 17, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 24**).

Squad: 16

Investigator:	Ariana Thomas	Inv. Ariana Thomas	03/29/2023
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	03/29/2023
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date